READ FIRST — HOW TO FILE YOUR RESPONSE

Kumar v. United States, No. 26-1250 (1st Cir.)

What this is. Your response to the Government's motion asking the First Circuit to end your appeal without full briefing. If the court grants that motion, your appeal is over. The response asks the court to deny it, to hold that Judge Wolf's certificate of appealability of August 28, 2025 covers all of your claims, and in the alternative to give you 30 days to apply for an expanded certificate.

Read the Declaration first. Your sworn Declaration comes right after the certificates at the end of the response. The response relies on it. Read every paragraph. Every statement must be true: that mail at Fort Dix has been sporadic, and that you never received the May 8, June 25 and July 1, 2026 orders. If any statement is not true, do not sign or file anything. Tell the person who sent you this package so the response can be corrected. The Government can get the prison's legal-mail records.

Choices the response makes for you. (1) It concedes that no proffer letter would have protected the false statements in Count 3. (2) It argues that Judge Wolf's certificate covers all four of your grounds and that the later two-issue certificate came from a clerk's order that could not narrow it. (3) It asks, in the alternative, for 30 days to apply for an expanded certificate on vindictive prosecution and on ineffective assistance at sentencing. If you disagree with any of this, do not file. Raise it first.

What to fill in, sign and date. Do it all on the same day you mail it.

1. The signature block at the end of the response, with the date.
2. The Certificate of Compliance, with the date.
3. The Certificate of Service and Declaration of Inmate Filing. Write the date you put the package in the legal mail. That date is the date your filing counts as made, so it must be true.
4. The Declaration. In paragraph 5, fill in the date you received the Government's

motion. Then sign and date it.

Copies. Make 4 complete sets for the court: the original plus 3 copies. Each set is the response, the Declaration, and Exhibits A–F, all pages. Make 1 complete set for the Government and 1 for yourself. Staple or clip each set securely. The original must have your ink signatures.

Where to mail.
Court (4 sets): Clerk, United States Court of Appeals for the First Circuit, John Joseph Moakley United States Courthouse, 1 Courthouse Way, Suite 2500, Boston, MA 02210.
Government (1 set), same day, same way: Donald C. Lockhart and Kriss Basil, Assistant U.S. Attorneys, U.S. Attorney's Office, 1 Courthouse Way, Suite 9200, Boston, MA 02210.

How to mail. Use the prison's legal mail system, with first-class postage prepaid. A prisoner's filing counts as made on the day it goes into the legal mail system, as long as the signed inmate-filing declaration is included. Ask for a receipt or log entry and keep it. Mail it as soon as you sign; the Government says the response is already late.

After you mail it. Keep your copy and your receipt. If your address or compound changes, write to the Clerk right away with the case number, 26-1250, and your new address. Watch for the court's order. The Government may file a reply.